

STATE OF NEW YORK

336--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. JACKSON -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to requiring the use of body-worn cameras on certain correction officers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The correction law is amended by adding a new section 135
2 to read as follows:

3 § 135. Body camera for correction officers. 1. The commissioner
4 shall, after consultation with the chairperson of the state commission
5 of corrections, require the use of body-worn personal video recording
6 devices on correction officers assigned to the supervision of general
7 population incarcerated individuals at a maximum security facility.
8 Each such officer shall wear a personal video recording device affixed
9 to their uniform while on duty in the facility. The personal video
10 recording device shall record all the interactions of a correction offi-
11 cer and incarcerated individuals under their care, custody and control.
12 The recording shall include both audio and video.

13 2. All such equipment shall be installed on or before six months after
14 the effective date of this section. The commissioner shall promulgate
15 all rules and regulations necessary to implement the provisions of this
16 section. Such rules and regulations shall require that all video
17 recordings be catalogued and maintained as a record by the department
18 for not less than six months and shall establish minimum standards for
19 the personal video recording devices, and recording equipment to be used
20 and furthermore shall provide for the protection of personal privacy for
21 those persons whose actions may be recorded. No personal video recording
22 devices may be used as a means to conduct surveillance upon any incar-
23 cerated individuals, officer or employee of the department.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00595-03-5

1 3. The commissioner shall issue a report within one year of the effec-
2 tiveness of this section and annually thereafter detailing the use of
3 and evaluating the effectiveness of personal video recording devices
4 including what impact, if any, the use of body-worn personal cameras has
5 on assaultive behaviors, serious injury, death, and other indicators of
6 increased physical safety of incarcerated individuals, officers and
7 personnel, and which shall also provide relevant recommendations.

8 § 2. This act shall take effect immediately.